



EAGLE MOUNTAIN PLANNING COMMISSION MEETING MINUTES

June 09, 2020, 5:30 p.m.
Eagle Mountain City Council Chambers
1650 East Stagecoach Run, Eagle Mountain, Utah 84005

5:30 P.M. – Eagle Mountain City Planning Commission Work Session

COMMISSION MEMBERS PRESENT: Matthew Everett, Christopher Pengra, Rich Wood, and Brett Wright. Commissioner Erin Wells was excused.

CITY STAFF PRESENT: Steve Mumford, Assistant City Administrator/Community Development Director; Pete Kane, Long-Range Planning Manager; Michael Hadley, Planning Manager; Jessa Porter, Planner; Fionnuala Kofoed, City Recorder; and Elizabeth Fewkes, Recording Secretary.

Commissioner Wood called the meeting to order at 5:30 p.m.

1. Discussion Items

1.A. Development Code Amendment – Industrial Zone – Presentation and Discussion

Commissioner Pengra presented Industrial Development: Economic Impact and Importance. He discussed the definition of economic development; economic development theories—neoclassical economic development theory, economic theory, location theory, and causation theory; common goals of economic development; heavy industry; potential benefits of industry in Eagle Mountain; competitive advantages; and the importance of zoning to mitigate encroachment and undesirable use concerns.

Assistant City Administrator/Community Development Director Steve Mumford explained the purpose of the Regional Technology and Industry Overlay Zone (RTI) was to assist in the expedition of business timelines to attract desirable industry to predesignated areas within Eagle Mountain.

Discussion ensued regarding industrial zoning, zone sunset clauses, desirable and undesirable uses, the benefits of attracting industry to the City, concerns regarding duplicate and incompatible uses, and prescriptive industrial use location designations.

1.B. Development Code Amendments – Extractive Industries Overlay & Sweetwater Industrial Overlay Zones – Discussion

Commissioner Wood presented his Industrial Zone amendment suggestions and stated the City Council desires to remove conditional uses from the Code.

Discussion ensued regarding the extension of the RTI sunset clause set to automatically repeal on May 31, 2022, industrial permitted uses, and overlay and zone qualification requirements.

The Sweetwater Industrial Overlay Zone was discussed after item 1.C.

Commissioner Wood stated he did not see the benefit of the Sweetwater Industrial Overlay Zone due to the Industrial Zone and the creation of the Light Manufacturing and Distribution Zone. He advocated for increased standards for all City development.

Commissioner Pengra stated preference for reduced zone standards in the area near the sewage treatment facility as the area would only attract industrial uses due to unpleasant odor concerns.

Commissioner Wright noted the purpose of the Sweetwater Industrial Overlay Zone is to provide industrial and business opportunities to provide buffering between the sewage treatment facility and high-end businesses and industrial uses and stated the difficulty in determining the appropriate size of area to permit to serve as a buffer.

Commissioner Everett agreed the overlay could be used strategically to provide a buffer and stated a preference to maintain the Sweetwater Industrial Zone, as the application of the overlay will require approval.

Discussion ensued regarding the desirable permitted uses, should the Sweetwater Industrial Overlay Zone be maintained.

Commissioner Wood requested for the Industrial Zone, Sweetwater Industrial Overlay Zone, and Extractive Industries Overlay Zone to return for the following work session.

1.C. Historical Preservation Zone – Discussion

Discussion ensued regarding the definition and purpose of the zone, potential applications for the zone, historical zone registries, preservation of historical areas within the City, and state and federal funding support.

Mr. Mumford stated the zone creation was necessary to qualify for grants, and he was unaware of any application of the zone currently within the City.

6:30 P.M. – Eagle Mountain City Planning Commission Policy Session

Commissioner Wood called the meeting to order at 6:39 p.m., thanked staff for their efforts to facilitate the remote meeting and excused Commissioner Erin Wells.

2. Pledge of Allegiance

City Recorder Fionnuala Kofoed led the Pledge of Allegiance.

3. Declaration of Conflicts of Interest

None.

4. Approval of Meeting Minutes

4.A. May 26, 2020 Minutes

MOTION: *Commissioner Everett moved to approve the May 26, 2020 minutes. Commissioner Pengra seconded the motion. Those voting aye: Matthew Everett, Brett Wright, Rich Wood, and Christopher Pengra. The motion passed with a unanimous vote.*

5. Status Report

Mr. Mumford stated staff is actively working on the special use standards for both the residential and commercial zones and will present the changes at the next meeting. Mr. Mumford introduced Pete Kane the recently hired Long-Range Planning Manager.

6. Action and Advisory Items

6.A. PUBLIC HEARING – AutoZone (Site Plan & Recorded Plat Amendment)

Planning Manager Mike Hadley presented the item. The application is for a recorded plat amendment and the proposed site plan for the AutoZone supply store located on lot 7 in the Porter's Crossing Town Center. The Lot is 2.39 acres with the majority of the lot located within the Tickville Wash and is zoned Commercial. A recorded plat amendment will remove the Tickville Wash from Lot 7, creating a separate lot for the wash.

The application was presented to the Planning Commission May 12, 2020 and the project was reviewed and tabled to allow the applicant to address concerns regarding architectural design and site location and to determine if a slope stability study is warranted for Tickville Wash. The public hearing was left open.

The applicant submitted updated plans which include relocating the building to the east side of property, farther away from the wash, and updated elevations replacing stucco and adding split-faced CMU. The applicant has worked with City Engineer regarding the wash and mitigation solutions.

The applicant has upgraded materials to further comply with Municipal Code. The right-side elevation could use additional roofline adjustment and architectural details; most of the right-side elevation will be blocked from visibility by the Jiffy Lube building.

The lighting/photometric plan has been submitted and complies with the dark sky ordinance. The building has been shifted away from wash; all parking and the building are located outside of the Tickville Wash Drainage Easement. The City Engineer will work with the applicant to address any concerns regarding the stabilization of the wash.

Mr. Mumford clarified regarding staff recommendations for additional roofline adjustment and architectural details for the right-side elevations and stated the preference for the left-side elevation and the addition of awnings.

Applicant representative Colby Anderson reviewed the changes to the plan to address concerns expressed by staff and the Planning Commission. He stated he would address the right-side elevation concerns with the AutoZone architects and reiterated the right side of the building would be blocked by the Jiffy Lube building and landscaping.

Commissioner Wood opened the public hearing at 6:59 p.m. No comments were submitted to the City Recorder's Office and no public was in attendance to make comment. As there were no comments, Commissioner Wood closed the hearing.

Commissioner Everett expressed appreciation for the applicant addressing Planning Commission concerns regarding the Tickville Wash and signage. He stated a willingness to allow reduced articulation on the right-side elevation due to the positioning of the building.

Commissioners Pengra and Wright thanked the applicant for the updated materials.

Commissioner Wright expressed concern the right-side elevation did not comply with Municipal Code standards.

Commissioner Wood stated the City Council would likely require Municipal Code adherence for the right-side elevations. He expressed appreciation for the applicant working to address concerns and for building in Eagle Mountain.

MOTION: *Commissioner Wright moved to recommend approval of the AutoZone site plan and recorded plat amendment to the City Council with the following conditions:*

- 1. The applicant shall work with the City Engineer to address any concerns regarding the stabilization of the Tickville Wash; and*
- 2. The applicant shall work with staff to add additional roofline adjustments and architectural details to the right-side elevations adjacent to Jiffy Lube.*

Commissioner Everett seconded the motion. Those voting aye: Matthew Everett, Brett Wright, Rich Wood, and Christopher Pengra. The motion passed with a unanimous vote.

6.B. PUBLIC HEARING – Sweetwater Industrial Overlay Zone (Rezone)

Mr. Mumford presented the item. The Sweetwater Industrial Master Site Plan/Preliminary Plat was reviewed by Planning commission May 26, 2020. The Planning Commission recommended approval to City Council with a vote of 4:1. This application is for a rezone to add the Sweetwater Industrial Overlay Zone to majority of the 201-acre site and includes all of the site except for the frontage along Pony Express Parkway and Tiffany Lane.

The Sweetwater Industrial Overlay Zone was created in 2015 as an alternative to an applicant-proposed development agreement for the property in question. The purpose of the overlay zone is to provide for and allow industrial and business opportunities that will provide a buffer zone between the wastewater treatment facility and higher end businesses and industrial uses. The standards and processes of the base zoning or underlying zoning shall be applicable unless modified or replaced by this overlay zone.

The property is designated mostly as Business Park/Light Industry on the City's Future Land Use and Transportation Corridors map and the property is zoned Industrial. Industrial zoning allows the site to be developed with a number of permitted and conditional uses. The Sweetwater Industrial Overlay Zone contains a separate land use table with specific permitted, conditional, and prohibited uses.

The requested zones are consistent with the land uses shown on Future Land Use and Transportation Corridor Map and comply with the policies and provisions of the City General Plan. The proposed uses and densities will be reasonably compatible with adjacent land uses, and the proposed use can be accommodated with public services and will not overburden the City's service capacity. The proposed use is within capabilities of streets serving the property and the proposed use is not expected to have a significant negative impact on surrounding property values.

Mr. Mumford reviewed recommendation options. A recommendation of approval to the City Council may be made if the application complies with the rezone criteria found in City Code, along with conditions of approval that address areas of concern, which may include (but are not limited to) specific land uses. In order to restrict certain land uses, a development agreement would likely be required, and could be drafted to be presented along with the request to the City Council. The Planning Commission should include specific recommendations to be included in the agreement. If the Commission is uncomfortable with the size or location of the proposed overlay zone, the area can also be modified. A recommendation of denial must be based upon findings of facts indicating how the project does not comply with the rezone approval criteria found in the City Code. A motion to table may be made with specific directions to give an applicant time to fully comply with the rezone approval criteria found in the City Code.

Applicant representative Scot Hazard verified the requested area for the Sweetwater Industrial Overlay Zone is located approximately 200 feet from Pony Express Parkway and Tiffany Lane and explained that those areas have been omitted from the renderings due to the need for lot line flexibility depending upon the determined uses.

Commissioner Wood reiterated his concerns expressed during the previous meeting regarding waiving a master development requirement for the application and suggested prescribed language to ensure the applicant's plan to develop commercial uses for the property along Pony Express Parkway and Tiffany Lane.

Mr. Mumford explained that overlay zones do not require a master development plan and the Planning Commission could recommend that the City Council requires a master development

agreement for the project to clarify planned uses. He stated rezone requests usually do not include land use details.

Commissioner Wood expressed concern that the uses do not fit into one zone, and regarding the property being split into industrial and commercial uses. He stated a preference for requirements to denote specific guidelines for proper buffering between the commercial and industrial areas.

Mr. Mumford stated the area was designated for industrial zoning on the Eagle Mountain Properties Master Development Plan. He explained as the zoning for the property had expired along with the master development agreement, so the property has no current vested rights. He stated the General Plan includes an Industrial Zone and the intended uses for this project concur with an industrial designation. The application for rezoning is due to the expiration of the original agreement. He said a future rezone application will be necessary for commercial applications for the section of the property along Pony Express Parkway and Tiffany Lane; it would be appropriate to rezone both areas now.

Commissioner Wood opened the public hearing at 7:24 p.m. No comments were submitted to the City Recorder's Office and no public was in attendance to make comment. As there were no comments, Commissioner Wood closed the hearing.

Mr. Hazard explained his comment regarding “neighborhood commercial” was intended to indicate the type of desired uses and not the Neighborhood Commercial Zone, as he is not yet familiar with the recent changes to the commercial zoning. He explained the commercial properties would be developed in the distant future, after the industrial area had been developed, and the desired uses for the proposed commercial parcels will need to be determined before the submission of a commercial zone application, in order to apply for the applicable commercial zone.

Mr. Hazard stated lots one and two have designed development. He stated the forthcoming site plan application for site one is for a satellite communication facility and would require space for satellite dishes, metal buildings, and gravel in an enclosed area. He requested the permissibility of construction light manufacturing and assembly and construction-related businesses, as he is in discussions with businesses requiring those uses. He stated the prohibition of metal buildings would greatly increase construction costs and make Eagle Mountain an undesirable location for the potential buyers. He explained the insulated metal panel buildings planned for the area have more aesthetically appealing facades than standard corrugated and flat-panel metal buildings.

Mr. Hazard explained the request for the overlay is to allow reduced standards and costs in order to attract buyers for the area near the wastewater treatment facility. He stated the overlay was originally created for this area, the features of the area have not changed, and the overlay would accommodate the users that have expressed interest in the area.

Commissioner Wood stated the Light Manufacturing/Distribution Zone (LMD) would accommodate the requested uses except for metal building material and gravel. He said an exemption to the gravel requirement could be granted due to the area being screened by fencing. Commissioner Wood expressed concern in permitting metal buildings due to the possibility of the

future removal of the wastewater treatment facility and commercial development of the area as occurred near 700 East and 7200 South in Midvale, Utah.

Mr. Hazard explained the intended design for the satellite building application and suggested permitting metal buildings and evaluating the aesthetics of each building during the site plan approvals.

Commissioner Wood stated a willingness to evaluate the proposed metal building design, but he did not desire the entire area to include only metal buildings. He stated the areas to the north and the east have pending or active requests for residential and commercial uses. He expressed concerns regarding some permitted uses in the industrial overlay.

Commissioner Everett inquired if any of the applicant's desired uses were included as conditional, not permitted, uses on the Sweetwater Industrial Overlay Zone Use Table. Mr. Hazard stated there may be interest in the area for automobile repair facilities, electronic data and management businesses, other manufacturing business, wholesale distribution, and outdoor storage. He stated he did not intend to partner with heavy industrial uses; however, as he is the applicant representative and not the landowner, he was not in the position to guarantee future intentions for the area nor able to predict all potential business interests. He stated he could only indicate what he has discussed for the area with the landowner.

Commissioner Everett stated the applicant did not appear to be interested in the land uses that he would object to locating in that area.

Mr. Hazard suggested Planning Commission consider how to accommodate appropriate and desirable uses for the area, instead of focusing on the exclusion of uses and stated the area is appropriate for reduced uses.

Commissioner Wood stated the Sweetwater Industrial Overlay Zone is outdated and the LMD zone would accommodate Mr. Hazard's desired uses and needs, except for metal buildings.

Commissioner Wood stated the purpose of creating the LMD and other zones is to encourage development within the City.

Commissioner Pengra stated sensitive, electronic equipment requires the use of insulating rock to prevent moisture issues, and satellite equipment may likewise require specific ground material. He expressed concern that being overly prescriptive with structural and aesthetical requirements will prevent business growth, and said creating significant barriers for new businesses, especially in a struggling economy, could be detrimental to the City. He stated his preference for permissibility for the initial industrial investments in the City, including metal buildings, to increase needed job opportunities and the tax base. He stated although the Eagle Mountain Municipal Code requires updating, he does not want to delay growth while amending business standards. He suggested to condition the removal of undesirable uses and recommending approval of the rezone application.

Commissioner Wright stated a desire to be sensitive to the applicant's timetable and potential buyers and reviewed the purpose of the Sweetwater Industrial Overlay Zone to serve as a buffer.

He expressed concern with rezoning the entire requested area and suggested recommending approval for the area closest to the Wastewater Treatment Facility and areas with current potential buyers requesting industrial uses. He concurred with Commissioner Pengra's desire to encourage economic development within the City but expressed concern with approving reduced standards for a large portion of land that may not be developed for some time. He stated the zoning for other portions could be evaluated with the active applications for individual lots.

Mr. Hazard explained the road in the northeast corner of the property had been moved in response to the discussion during the approval of the master site plan.

Commissioner Everett stated he is familiar with the insulated metal panel building appearance and the buildings would be an appropriate buffer between the Wastewater Treatment Facility and other uses. He concurred with Mr. Hazard that the Planning Commission should consider and discuss the desired industry for the area and provide better use definitions on the Industrial Use Table. He concurred with concerns regarding applying the industrial overlay to the entire area. He suggested the inclusion of a five- or six-year sunset clause on the rezone approval. He stated that although the parcel is large, he was inclined to encourage the City Council to waive a master development plan for this project. He stated appreciation for the inclusion of commercial uses to buffer the proposed industrial area from the roads.

Commissioner Pengra stated the purpose of industrial areas is to place less-desirable businesses in locations away from residential and higher-end businesses. He stated being overly prescriptive in the allowed uses would exclude many industrial applications, as the inclusion of standards to address all potential uses would be impossible due to the large variety of industrial businesses. He stated industrial uses generally provide more jobs than other retail businesses, and create commerce and are important and valuable to a community. He expressed the opinion the area would not entice unattractive metal buildings; however, he was not concerned about the aesthetics of the buildings. He stated his preference to apply the overlay to the entire area with reduced standards for the original investors with the intention to be more prescriptive with future applications but expressed a willingness to recommend approval for only a portion of the property due to the concerns expressed by the other Commissioners.

Discussion ensued regarding recommending approval of the overlay for only a portion of the property and potentially designating the remaining area as a different zone such as the LMD.

Mr. Hazard stated he has been able to remain current with all the Municipal Code updating. Mr. Hazard said he had requested the Sweetwater Industrial Overlay Zone, because he was familiar with it and knew that it would accommodate the intended uses for the property. He expressed a willingness to rezone to an alternate zone designation, if it permits his desired uses. Mr. Hazard stated the LMD is not currently listed on the Eagle Mountain website as a zone option available to the public.

Mr. Mumford verified the LMD zone would be presented to the City Council at the June 16, 2020 City Council meeting.

Mr. Hazard stated as the creation of the LMD zone has yet to be approved, he had no way of knowing about or requesting the zone for this application. Mr. Hazard requested clarity regarding permissible uses to provide security to attract businesses and to prevent concerns regarding the rezoning application request delays or denial of each application for the area.

Discussion ensued regarding potential Municipal Code standards to apply to industrial areas, concerns regarding rushing Municipal Code amendments to accommodate the application, recommended conditions regarding conditional and permitted uses, the request by the applicant to review the application in accordance with existing and current City zones, the potential to delay the application should the City Council not approve the LMD zone and potentially including a sunset clause for the overlay approval.

MOTION: *Commissioner Pengra moved recommend approval to the City Council of the Sweetwater Industrial Overlay Zone rezoning of parcel 59:056:0039 with a setback of 200 feet from Pony Express Parkway and Tiffany Lane and excluding the 80-acre parcel to the west with the following conditions:*

- 1. Automobile sales and/or services shall be a permitted use;*
- 2. Convenience stores shall be a permitted use;*
- 3. Electronic data management businesses shall be a permitted use;*
- 4. Laundry and dry-cleaning establishments shall be prohibited;*
- 5. Manufactured homes developments shall be prohibited;*
- 6. Motels and hotels shall be prohibited;*
- 7. Other manufacturing businesses shall be a permitted use; and*
- 8. Restaurants and banks (with drive-through service facilities) shall be prohibited.*

Commissioner Everett seconded the motion. Those voting aye: Matthew Everett and Christopher Pengra. Those voting nay: Brett Wright and Rich Wood. The motion failed with a vote of 2:2.

Commissioner Wright requested a reduction in the area to which the Sweetwater Industrial Overlay Zone would be applied to include the land south of 2580 North and between 1020 East and 1300 East (lot 1, lot 2, the 32.24-acre development area, the 10.28-acre development area) and the 2.67 acre development area east of 1300 East and South of 2450 North.

Commissioner Pengra inquired if the applicant was amenable to Commissioner Wright's suggestion and reiterated his preference to approve the area he suggested as it will be beneficial to the City.

Commissioner Everett stated he would agree to a reduction of the area included in a rezoning recommendation approval, as the City Council could determine to expand or reduce the acreage. He stated his preference to include the areas proposed in Commissioner Pengra's motion that comprises of the area south of Tiffany Lane and east of Pony Express Parkway (excluding the 200-foot commercial setbacks proposed by the applicant) to 1020 East to include the 14.70-acre development area and the 29.31-acre development area.

Commissioner Wright explained the reason for the area he proposed for the industrial overlay approval was to allow the development of lot one and two and for the applicant to move forward to the City Council for feedback regarding the application. He expressed concern with approving the Sweetwater Industrial Overlay on any area within the City and stated the preference to apply the LMD or Industrial Zone at a future date once the zone has been approved with the desired standards for industrial development within the City.

MOTION: *Commissioner Wright moved to recommend approval to the City Council of the Sweetwater Industrial Overlay Zone rezone for the following areas: lot 1, lot 2, the 32.24-acre development area, the 10.28-acre development area, and the 2.67-acre development area with the following conditions:*

- 1. Automobile sales and/or services shall be a permitted use;*
- 2. Convenience stores shall be a permitted use;*
- 3. Electronic data management businesses shall be a permitted use;*
- 4. Laundry and dry-cleaning establishments shall be prohibited;*
- 5. Manufactured homes developments shall be prohibited;*
- 6. Motels and hotels shall be prohibited;*
- 7. Other manufacturing businesses shall be a permitted use; and*
- 8. Restaurants and banks (with drive-through service facilities) shall be prohibited.*

Commissioner Wood seconded the motion. Those voting aye: Matthew Everett, Brett Wright, Rich Wood, and Christopher Pengra. The motion passed with a unanimous vote.

Commissioner Wood recessed the meeting from 8:49 to 8:59 p.m.

7. Action Items: Marketplace at Eagle Mountain Town Center

7.A. PUBLIC HEARING – Marketplace at Eagle Mountain Town Center (Rezone)

Mr. Mumford presented the item. The application was reviewed by the Planning Commission in January and discussed by the City Council in February. The property is located at the northwest corner of Pony Express Parkway and Eagle Mountain Boulevard and was zoned commercial C-2 in the Eagle Mountain Properties Master Development Plan. The master development agreement has expired. The applicant is requesting a rezone of approximately 27 acres to Commercial Community and approximately 14.5 acres to the Multifamily 2 Zone.

The property is designated as Community Commercial on the City's Future Land Use and Transportation Corridors map. Residential units may be an accessory use to any of these types of commercial development but may not be a stand-alone development in these areas. The Commercial Community zone in this location complies with the General Plan. The proposed Multifamily Two Zone, if seen as an accessory use to the commercial in this location, depending on the size, density, etc., could be considered appropriate as well.

The Commercial Community Zone is intended to provide areas of commercial retail, office, and services located near transportation hubs and major intersections and is designed to buffer

neighboring residential areas. The proposed Multifamily 2 area appears to be within walking distance of parks, adjacent to retail/office development, and adjacent to a major intersection of two major roads (minor arterials).

The requested zones are consistent with the land uses shown on the General Plan's Future Land Use and Transportation Corridor Map and comply with the policies and provisions of the General Plan. The proposed uses and densities will be reasonably compatible with adjacent land uses, and the pattern of proposed uses and densities will appropriately buffer potentially incompatible uses. The proposed use can be accommodated with public services and will not overburden the City's service capacity, and traffic generation by the proposed use is within capabilities of streets serving the property. The proposed use is not expected to have a significant negative impact on surrounding property values.

Commissioner Wood expressed concern regarding driving through the multifamily housing development to access the commercial locations due to no northern access to the Autumn Ridge subdivision.

Mr. Mumford stated 20 feet of improved landscape buffering along the property line between commercial and single-family lots or single-family to multifamily lots is required to meet the transitioning standards. He stated the west side of the project needs more open space in addition to the trail connection. He stated a preference for improved connectivity throughout the City; however, connectivity through neighborhoods to major roadways may increase traffic and raise concerns for residents. He stated the storm water parcel presents difficulties for road installation in the northwest corner of the project.

Applicant representative Bill Gaskill stated the applicant does not oppose a road connection to the northwest corner of the project; however, discussions with the City Council indicated a road was not desired in the area.

Commissioner Pengra inquired regarding the increase in high density acreage from the previously presented site plan.

Mr. Gaskill explained the addition of the road connection from the roundabout to Eagle Mountain Boulevard had been in response to feedback from the City Council and resulted in further redesign including the removal of the single-family units across the northern property line and the consolidation of the unusable acreage surrounding the storm drain pond. He stated the intention was to relocate, not increase the multifamily acreage.

Commissioner Wright stated favor for connectivity to the neighborhoods to the northwest of the property from Raven Way to Eagle Mountain Boulevard. He inquired regarding the volume of multifamily proposed for the project.

Mr. Gaskill indicated his expertise and focus is on the commercial properties. He said the Multifamily 2 zoning would be more appropriate for the location of the residential parcels. He explained he added the public road between the multifamily areas to prevent a large block of multifamily housing. He stated he has not calculated the density or designed a plan but is

considering townhomes for the location and indicated he would consult with a builder to determine the best housing type for the areas.

Mr. Gaskill explained in response to feedback from the previous meetings with the Planning Commission and the City Council, he discussed the project with his brokers and engineers and determined to create a business park environment. The area proposed for multifamily units is not visible from the main roadways. He said the owner of the property owns other land in the City with better visibility and viability for commercial property than the northwest portion of this property. The owner does not want to withhold more suitable commercial property from potential buyers in order to attempt to sell all the lots in this project, and the office environment is changing and experiencing demand setbacks due to the COVID-19 pandemic. He expressed the opinion that the land proposed for multifamily would not sell as office space and would remain undeveloped for a long period of time.

Commissioner Wood compared the layout to a similar location in Midvale, Utah, and stated the Midvale location has several layers of commercial properties in the area similar to that proposed for multifamily. He stated preference to delay development until commercial uses are found for the property instead of granting a rezone of a portion of the property to residential.

Commissioner Wood opened the public hearing at 9:28 p.m.

An email communication received from Reagan Peck expressed concern regarding the development of multifamily in the area and the resulting increase to traffic and stated favor for commercial development for the area.

Commissioner Wood closed the public hearing at 9:29 p.m.

Commissioner Pengra stated he understands the desire for multifamily units to compliment a commercial area. He said his calculations indicated the acreage for the multifamily discussed earlier had been relocated as opposed to increasing, but the density has increased. He stated although he does not object to higher density housing, the proposal for that many multifamily units to be ancillary to the retail space is not the best option for this area.

Commissioners Wright and Everett concurred with the preference to maintain the area as commercial zone.

MOTION: *Commissioner Everett moved to recommend approval to the City Council of the Marketplace at Eagle Mountain Town Center rezone, rezoning the entire project to Community Commercial. Commissioner Wright seconded the motion. Those voting aye: Matthew Everett, Brett Wright, Rich Wood, and Christopher Pengra. The motion passed with a unanimous vote.*

7.B. PUBLIC HEARING – Marketplace at Eagle Mountain Town Center (Master Site Plan and Preliminary Plat)

Mr. Mumford explained options regarding the item as the master site plan and preliminary plat are no longer relevant, because the residential portion was recommended to be excluded from approval during the previous motion.

Mr. Mumford presented the item for the benefit of the public. The application was reviewed by Planning Commission January 28, 2020 and was recommended for approval with conditions. Several significant changes have been made to the proposal to try and resolve concerns of the Planning Commission and City Council. This is an applicant-proposed commercial and multi-family project on approximately 39 acres located northwest of the large roundabout at Eagle Mountain Boulevard and Pony Express Parkway. This project includes a grocery store, grocery expansion area, several retail and office pad sites, a future commercial area, and approximately 12 acres of multi-family residential. The City is not responsible if, over time, the project is unable to service a possible user due to undersized utilities, roadways, or other infrastructure. If upgrades to such facilities are necessary, they will be borne solely by the applicant.

Commissioner Wood opened the public hearing at 9:50 p.m.

An email communication received from Reagan Peck expressed concern regarding the development of multifamily in the area and the resulting increase to traffic and stated favor for commercial development for the area.

Commissioner Wood closed the public hearing at 9:51 p.m.

Commissioner Wood suggested tabling the item to allow the applicant to receive feedback from the City Council regarding the rezone before moving forward with changes.

Applicant representative Bill Gaskill stated the site plan would not change if the entire property is rezoned to Community Commercial. He said he could not speak to whether the applicant would accept the rezone or not. Mr. Gaskill stated the only change to the site plan would be designating the multifamily residential area to future commercial.

Commissioner Wood stated should the design not change, concerns regarding connectivity issues in the northwest corner would need to be addressed.

Mr. Gaskill stated concerns regarding the connectivity could be addressed with a condition to allow for the site plan to move forward.

Commissioner Wood stated he would like to see the road connection to Raven Way and the lighting plan before making a recommendation regarding the site plan to the City Council.

Mr. Gaskill stated the lighting plan for the public right-of-way had been submitted that did not include the interior lighting.

Commissioner Wood clarified his preference to table the item is due to the connectivity to Raven Way and potential concerns could change depending upon whether residential or commercial developments were approved for the northwest area of the project.

Mr. Mumford stated the Planning Commission could condition the connectivity to Raven Way and the commercial development in lieu of the multifamily residential in the approval recommendation for the site plan. He stated he was worked extensively on the project and the applicant has been willing to connect to Raven Way and expressed the opinion the concerns could be addressed with this application to allow the project to move forward.

Commissioner Pengra stated the road connection to Raven Way is his only concern.

Commissioner Wright inquired regarding the difference in elevations between the grocery store and the other businesses. Mr. Gaskill stated the elevations were created before they received the elevations for the grocery store last week. He explained the grocery store is a cinderblock building and the material is not suitable for the smaller buildings. He expressed a willingness to revise the elevations to be more in harmony with the design of the anchor grocery store.

Commissioner Wright stated that in fairness to the applicant, the Planning Commission could move the application forward with conditions outlining their concerns.

Commissioner Everett stated his inclination was to table the application but expressed a willingness to move the application forward with conditions.

Commission Wood expressed concern that recommending an incomplete application to the City Council would not fulfil their responsibility as a Planning Commission.

Commissioner Pengra stated the site plan applies to the areas indicated on the site plan and the lighting plan and landscaping consistency could be included as a condition.

Commissioner Wright stated it perhaps would be better to see the road connections before moving the application forward.

Commissioner Pengra stated the Planning Commission did not express more valuable insight regarding road connectivity than staff and the City Council that would merit the delay of the project and his concerns centered on the implementation of the connectivity as opposed to the design specifics of the road layout.

MOTION: *Commissioner Wood moved to table the Marketplace at Eagle Mountain Town Center master site plan and preliminary plat until the rezone has been reviewed and decided upon by the City Council. Commissioner Everett seconded the motion. Those voting aye: Matthew Everett, Brett Wright, and Rich Wood. Those voting nay: Christopher Pengra. The motion carried with a vote of 3:1.*

Commissioner Wood directed the applicant to review connecting Raven Way to Eagle Point Entry Road and stated the Commission does not want to approve the master site plan until the rezone is finalized.

8. Discussion Items

9. Next scheduled meeting

Commissioner Wood requested the inclusion of Industrial Zone, Historical Preservation Zone, and the Extractive Industries Overlay Zone on the agenda for discussion during the next work session. Mr. Mumford stated special use standards would also be discussed during the next meeting.

10. Adjournment

MOTION: *Commissioner Everett moved to adjourn the meeting at 10:12 p.m. No second or vote was called.*

The meeting was adjourned at 10:12 p.m.

Approved by the Planning Commission on June 23, 2020.


Steve Mumford (June 20 15:15 MDT)

Steve Mumford, AICP
Assistant City Administrator/Community Development Director

1609_001

Final Audit Report

2020-07-09

Created:	2020-07-09
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